

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA**

CHRISTOPHER HANSON, individually and
as attorney for himself and attorney/next friend
for his minor children [8 years old] and [6 years old],

Plaintiff,

v.

Case No.: 2025-CA-10255

THIRTEENTH JUDICIAL CIRCUIT
COURT, CLERK OF THE COURT
FOR THE THIRTEENTH JUDICIAL
CIRCUIT, GINA JUSTICE (AND/OR
CURRENT COURT ADMINISTRATOR),
CHIEF JUDGE CHRISTOPHER C.
SABELLA, JUDGE KELLY AYERS,
JUDGE MATTHEW FELIX, MIKE MOORE,

Defendants.

_____/

**DEFENDANTS' FIRST AMENDED¹ RESPONSE TO CONFIDENTIALITY AS PER
ORDER ON "PLAINTIFF'S MOTION FOR SANCTIONS AND ENTRY OF
PEREMPTORY WRIT OF MANDAMUS, OR ALTERNATIVELY, FOR WRITTEN
ORDER WITH FINDINGS SETTING EVIDENTIARY HEARING" AND ORDER ON
"PLAINTIFF'S COMBINED MOTION FOR INTERLOCUTORY
RECONSIDERATION, REHEARING UNDER FLA. R. CIV. P. 1.530(g), AND
CLARIFICATION ON ORDERS AT DOCKET 80 AND 81"**

Defendants, THIRTEENTH JUDICIAL CIRCUIT COURT, TRIAL COURT
ADMINISTRATOR GINA JUSTICE, CHIEF JUDGE CHRISTOPHER C. SABELLA, JUDGE
KELLY AYERS, and JUDGE MATTHEW FELIX , (hereinafter "Defendants"), by and through
undersigned Counsel and pursuant to Fla. R. Civ. P. 1.630 and 1.140 and Florida Statutes Chapter

¹ Amended to include previously omitted paragraph and corrected authority and case law.

119, file their Written Response to the Court’s Order entered on August 27, 2026 in reference to the responsive record (other than the Video) which is exempt or confidential.

MEMORANDUM OF LAW

Judicial immunity “embraces persons who exercise a judicial or quasi-judicial function; and the immunity rests on the sound public policy that a strict guarantee of immunity is necessary to preserve the effectiveness and impartiality of judicial and quasi-judicial offices.” *Office of State Attorney, Fourth Judicial Circuit of Florida v. Parrotino*, 628 So. 2d 1097, 1098 (Fla. 1993).

“Judges enjoy absolute immunity for acts performed in the course of their judicial capacities unless they clearly act without jurisdiction.” *Johnson v. Harris*, 645 So. 2d 96, 98 (Fla. 5th DCA 1994). The rationale for judicial immunity includes the important public policies of protecting the finality of judgments, discouraging inappropriate collateral attacks, and preserving judicial independence by insulating judges from lawsuits by unsatisfied litigants. *Forrester v. White*, 484 U.S. 219, 225 (1988).; *see also Kalmanson v. Lockett*, 848 So. 2d 374 (Fla. 5th DCA 2003); *Berry v. State*, 400 So. 2d 80 (Fla. 4th DCA 1981).

In determining whether the action taken was a judicial act, the court considers whether the action was a normal judicial function, whether the event occurred in the courtroom or judge’s chambers, whether it centered around a case pending before the judge, and whether the judge was acting in his judicial capacity at the time. *Kalmanson v. Lockett*, 848 So. 2d 374, 378 (Fla. 5th Dist. App. 2003); *Mireles v. Waco*, 502 U.S. 9, 12 (1991).

If any actions on a case were done at judicial direction they can be considered nonmechanical functions integral to the judicial process that are entitled to absolute immunity. *Fong v. Forman*, 105 So. 3d 650, 653. *See also Richman v. Sheahan*, 270 F.3d 430, 437 (7th Cir.2001) (noting that “for court personnel and adjuncts who do not exercise a discretionary

function comparable to a judge's, the justification for extending absolute immunity is most compelling when the lawsuit challenges conduct specifically directed by the judge....”). With respect to the Court’s mental impressions which may, or may not have been expressed in the records, they are protected by judicial immunity, their personal impressions are protected and not subject to disclosure. See *DHSMV v. Marks*, 898 So.2d 1063 (Fla. 5th DCA 2005), citing *Johnson v. Harris*, 645 So.2d 96, 98 (Fla. 5th DC A 1994).

Petitioner seeks an Order of Mandamus requiring Respondents to disclose the documents and records concerning Judicial disqualification and recusal records and associated documents and communications; Administrative and all other communications regarding the GAL issue including Judge Ayers’ request for a summary and Husband’s objection to excusing Attorney Davis from drafting the summary; Transcripts and filings referenced in public proceedings; Email and text communications of Judge Kelly Ayers and Wendy DePaul and their judicial assistants related to this case including those related to scheduling, objections, and disqualification/recusal; and visual and audio recordings of specified hearings, primarily the April 4, 2025 hearing, offered by Judge Ayers as part of a lie/threat made on the formal transcript, in compliance with Florida Statute 119. There were documents that were withheld under Florida Rule of General Practice and Judicial Administration 2.420(c)(1), which states: “Trial and appellate court memoranda, drafts of opinions and orders, court conference records, notes, and other written materials of a similar nature prepared by judges or court staff acting on behalf of or at the direction of the court as part of the court's judicial decision-making process utilized in disposing of cases and controversies before Florida courts unless filed as a part of the court record.” This rule is very closely related to judicial immunity and follows many of the same ideals. The withhold of such records is appropriate pursuant to the Florida Rule of General Practice and Judicial Administration 2.420(c)(1).

Judges or court staff often exchange ideas about legal issues that frequently arise. Such ongoing discussions are part of a “court's judicial decision-making process utilized in disposing of cases and controversies before Florida courts,” even if the discussions are not tied to a particular case. Fla. R. Jud. Admin. 2.420(c)(1). *Jacobs Keeley, PLLC v. Chief Judge of Seventeenth Judicial Circuit*, 169 So. 3d 192, 194 (Fla. 4th DCA 2015).

Plaintiff claims that the requests were partially provided but redacted or acknowledged their existence and failed to provide the records. Plaintiff claims that the non-responsive documents and communication are evidence of the Defendants’ intent to subvert the truth and conceal evidence of judicial misconduct. For the records to which were withheld, they are confidential under Florida Rule of General Practice and Judicial Administration 2.420(c)(1). This rule applies to the four (4) pages withheld of the requested records as they contain information that is part of the Court’s decision making process (five (5) emails on four (4) pages). This information was provided to Mr. Hanson on August 22, 2025. Exhibit A. All other documents were provided.

The records are identified below with the date, author, recipient, and general subject matter:

- (1) Date- April 28, 2025; Author-Assistant Court Counsel; recipient-Judge DePaul; and general subject matter- judicial recusal. This document is confidential under Fla. R. Jud. Admin. 2.420(c)(1).
- (2) Date- April 28, 2025; Author- Judge DePaul; recipient- Assistant Court Counsel; and general subject matter- judicial recusal. This document is confidential under Fla. R. Jud. Admin. 2.420(c)(1).
- (3) Date- April 28, 2025; Author-Assistant Court Counsel; recipient-Judge DePaul and Judicial Assistant; and general subject matter- judicial recusal. This document is confidential under Fla. R. Jud. Admin. 2.420(c)(1).

(4) Date- April 28, 2025; Author-Judicial Assistant; recipient-Judge DePaul and Assistant Court Counsel; and general subject matter- judicial recusal. This document is confidential under Fla. R. Jud. Admin. 2.420(c)(1).

(5) Date- April 28, 2025; Author- Judge DePaul; recipient- Assistant Court Counsel and Judicial Assistant; and general subject matter- judicial recusal. This document is confidential under Fla. R. Jud. Admin. 2.420(c)(1).

CONCLUSION

WHEREFORE, Defendants, Thirteenth Judicial Circuit Court, and Trial Court Administrator Gina Justice, Chief Judge Christopher C. Sabella, Judge Kelly Ayers, and Judge Matthew Felix respectfully respond to this Honorable Court's Order for their position on confidentiality.

Respectfully Submitted,

JAMES UTHMEIER
ATTORNEY GENERAL

/s/ Jessica Schwieterman

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Sabella, Judge Ayers, and Judge Felix

CONFERRAL STATEMENT

I certify that conferral prior to filing is not required under rule 1.202.

CERTIFICATE OF SERVICE

I hereby certify that on September 17, 2026, I electronically filed the foregoing with the Clerk of Court by using the Florida Courts eFiling Portal.

/s/ Jessica Schwieterman
Jessica Schwieterman
Senior Assistant Attorney General